

		Defendant denied Plaintiff the opportunity to respond to the allegations, and it falsely branded Plaintiff a sexual harasser. (Complaint, ¶¶ 70-71.) After terminating Plaintiff, Defendant first denied Plaintiff unemployment benefits, then blackballed him from selling Defendant's insurance products to his clients, all of which forced Plaintiff to tell his wife about the false allegations. (Complaint, ¶¶ 70-71.) Taken together, these allegations rise to the level of extreme and outrageous conduct, which are sufficient to support Plaintiff's fourth cause of action. Plaintiff to give notice.
4	Avelar-Jauregui vs Lieban	1. <u>Motion to Compel Answers to Form Interrogatories</u> 2. <u>Motion to Compel Answers to Special Interrogatories</u> 3. <u>Motion to Compel Production</u> TENTATIVE RULING: Plaintiff Leonel Avelar-Jauregui's motions to compel Defendant Robert Alan Lieban aka Robert Alan Lieban Jr. to serve further responses to his second sets of Form Interrogatories (nos. 16.2-16.5), Special Interrogatories (no. 113), and Request for Production (nos. 50-54) are GRANTED. Defendant is ordered to serve verified further responses, and produce responsive documents, within 30 days. The Court DENIES Plaintiff's requests for judicial notice, and it deems Defendant's objections to the requests for judicial notice as being MOOT. <u>Form Interrogatory nos. 16.2-16.5</u> In his August 10, 2023 amended response to Form Interrogatory nos. 16.2 through 16.5, Defendant responded as follows: This interrogatory calls for information which seeks defendant's opinion or conclusion without establishing a proper foundation, and calls for expert opinion which defendant is not qualified to render regarding plaintiff's claimed injuries. Therefore, after a reasonable inquiry and good faith effort made, defendant responds:

	Unknown at this time. Defendant has not yet received and reviewed all of plaintiff's medical records and billings, or had plaintiff examined and/or plaintiff's medical records reviewed by a medical professional for an opinion regarding the reasonableness and necessity of his medical treatment and charges, if warranted. Discovery and investigation are continuing. (Exhibit B to Declaration of Christopher Mosier in Opposition to FROGG Motion.) Attorney Mosier explains, at the time Defendant's responses to the Form Interrogatories were prepared, there were at least two subpoenas to Plaintiff's healthcare providers still pending. (Mosier Declaration, ¶ 4.) In addition, Plaintiff's Independent Medical Examination (IME) had yet to be completed, and the parties had yet to designate experts. (Mosier Declaration, ¶ 5.) However, by attorney Mosier's own admission, Plaintiff's IME should have been completed by November 14, 2023, i.e., approximately six days before Defendant filed his Oppositions. Further, while Mosier states the two subpoenas were served on June 12, 2023 and July 26, 2023, and they were still pending at the time Defendant served his responses to the Form Interrogatories, the evidence shows the subpoenas in question were actually served on May 16, 2023 and June 28, 2023, and they required production on June 12, 2023 and July 26, 2023, respectively. (Exhibit 19 to Bakhsheshian Declaration.) Thus, unless production of the records was delayed, Defendant should already have been in possession of said records at the time he served his August 10, 2023 amended responses. In addition, Plaintiff has presented evidence that: (1) He responded to Defendant's written discovery on September 23, 2022 (2) Defendant had sent seven subpoenas for Plaintiff's medical records, including the two referenced in attorney Mosier's declaration. (3) Plaintiff was deposed March 28, 2023. (Bakhsheshian Declaration, ¶¶ 23-25; Exhibits 18-20 to Bakhsheshian Declaration.) While Defendant may have been waiting to receive additional records and information regarding Plaintiff's injuries, he had more
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than sufficient information to provide Plaintiff with a proper response to Form Interrogatory nos. 16.2 through 16.5, i.e., whether Defendant contends Plaintiff was not injured by the incident, whether Plaintiff's claimed injuries were not caused by the incident, whether any of the healthcare services, and the costs of services, Plaintiff received were not due to the incident.

The Court finds Plaintiff is entitled to a further response to Form Interrogatory nos. 16.2, 16.3, 16.4, and 16.5.

Special Interrogatory no. 113

The parties dispute whether Plaintiff is entitled to the identity of the medical facility where Defendant had his kidney removed.

First, the identity of treating physicians is not privileged, and it is subject to discovery. (*Schreiber v. Estate of Kiser* (1999) 22 Cal.4th 31, 38; *Barnes v. Superior Court In and For Los Angeles County* (1958) 163 Cal.App.2d 277, 278-279; see *Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546 [discovery may be obtained of the discovery and location of persons having knowledge of any discoverable matter].)

For discovery purposes, information is relevant if it "might reasonably assist a party in *evaluating* the case, *preparing* for trial, or *facilitating* settlement..." [Citation.] Admissibility is *not* the test and information, unless privileged, is discoverable if it might reasonably *lead* to admissible evidence. [Citation.] These rules are applied liberally in favor of discovery [citation], and (contrary to popular belief), fishing expeditions *are* permissible in some cases. [Citation.] More specifically, the identity of witnesses must be disclosed if the witness has "knowledge of any discoverable matter," including fact, opinion and any information regarding the credibility of a witness (including bias and other grounds for impeachment). [Citations.]

(*Gonzalez, supra*, 33 Cal.App.4th 1539, 1546.)

In *Barnes*, the plaintiff filed a products liability lawsuit based on injuries she sustained from use of a liquid hair straightener defendants sold her. (*Barnes, supra*, 163 Cal.App.2d at p. 278.) At her deposition, the plaintiff was asked for the name of the family doctor she had consulted during the year prior to the incident, but she refused to provide that information based on advice of counsel. (*Ibid.*)

The *Barnes* court held the identity of that family doctor was reasonably calculated to lead to the disclosure of discoverable information, such as other persons who might have knowledge of a pre-existing condition which was the cause of plaintiff losing her hair, rather than the use of defendant's product. (*Barnes, supra*, 163 Cal.App.2d at pp. 278-279.) The *Barnes* court went on to state, "There is no suggestion or claim that the compulsory disclosure of the names of the physicians who had treated plaintiff in the past would constitute an invasion of the physician-patient privilege, and if such a claim were made it would in any event be unavailing. [Citation.]" (*Id.* at p. 279.)

Based on the holding of *Barnes*, the Court finds Plaintiff is entitled to the identity of the medical facility where Defendant had his kidney removed.

John B. v. Superior Court (2006) 38 Cal.4th 1177 is inapposite because that case dealt with whether a wife may inquire into her husband's medical records and sexual conduct in order to confirm or refute her allegations that the husband negligently infected her with HIV. While *Hill v. National College Athletic Assn.* (1994) 7 Cal.4th 1 discussed a plaintiff's interest in the privacy of his medical treatment and information, that case did not deal with the information sought here, namely, the name of a medical provider who previously treated Defendant. Thus, neither *John B.* nor *Hill* support Defendant's contention he has an absolute right to privacy in the identity of his medical providers and medical records.

As for the relevance of the identity of the medical facility where Defendant had his kidney removed, Plaintiff alleges the prior kidney removal rendered it more likely that alcohol would linger in Defendant's bloodstream for a longer period of time, such that his decision to operate a vehicle after consuming alcoholic beverages warrants the imposition of punitive damages.

While Defendant has not himself placed his medical history, or his medical condition, at issue, Plaintiff is entitled to discovery as to the identity of the healthcare professional who performed the kidney removal, as it would reasonably assist Plaintiff with evaluating the case, with preparing for trial, and with facilitating settlement.

Thus, the Court **GRANTS** the Motion as to Special Interrogatory no. 113.

Request for Production nos. 50-52